

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

CASE OF IONOV AND OTHERS v. RUSSIA

(Applications nos. 6991/15 and 21 others –
see appended list)

JUDGMENT

STRASBOURG

11 May 2023

This judgment is final but it may be subject to editorial revision.



In the case of Ionov and Others v. Russia,

The European Court of Human Rights (Second Section), sitting as a Committee composed of:

Lorraine Schembri Orland*, President*,
Frédéric Krenc,
Davor Derenčinović*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 13 April 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers and/or participants of public assemblies. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers and/or participants of public assemblies, namely the dispersal of these assemblies, as well as their arrest followed by their conviction for administrative offence. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts); *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014; and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. The applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its well-established case-law (see *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 84-138, 10 April 2018, as regards unlawful administrative arrest, and *Karelin v. Russia*, no. 926/08, 20 September 2016, concerning examination of criminal cases in the absence of a prosecuting party in the judicial proceedings governed by the Federal Code of Administrative Offences (CAO)).

V. REMAINING COMPLAINTS

13. In view of its findings above, the Court considers that there is no need to deal separately with the remaining complaints under Article 6 of the Convention raised by some of the applicants in relation to other aspects of the fairness of the proceedings.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

14. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

15. Regard being had to the documents in its possession and to its case-law (see, in particular, *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table and dismisses the remainder of the applicants' claims for just satisfaction.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with the applicants' complaints as they relate to the facts that took place before 16 September 2022;

3. *Declares* the complaints concerning the right to peaceful assembly and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *decides* that it is not necessary to examine separately the remaining complaints under Article 6 of the Convention concerning other aspects of the fairness of the proceedings;

4. *Holds* that these applications disclose a breach of Article 11 of the Convention concerning the right to peaceful assembly;

5. *Holds* that there has been a violation of the Convention as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*

   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the

currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

7. *Dismisses* the reminder of the applicants' claims for just satisfaction.

Done in English, and notified in writing on 11 May 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	Lorraine Schembri Orland President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage, and costs and expenses per applicant (in euros)[1]
1.	6991/15 30/01/2015	**Dmitriy Erikovich IONOV** 1987	Mezak Ernest Aleksandrovich Saint-Barthélemy d'Anjou	Manifestation against the reform of the Russian Academy of Sciences Moscow 05/07/2013	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 30/07/2014	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Moscow City Court on 30/07/2014	3,500
2.	2136/18 05/12/2017	**Nataliya Nilovna LOBOVKINA** 1957	Pyshkin Valentin Valentinovich St Petersburg	Rally for the rotation of Russian high-ranking officials St Petersburg 29/04/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 06/06/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrested at 2.40 p.m. on 29/04/2017; taken to a police station to draw a record of administrative offence; released at 10 p.m. on the same day; the complaint was raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: St Petersburg City Court on 06/06/2017	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage, and costs and expenses per applicant (in euros)[1]
3.	2563/18 18/12/2017	**Grigoriy Andreyevich YUROV** 1986	Sholokhov Igor Nikolayevich Kazan	Anti-corruption rally Chelyabinsk 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 8,000	Chelyabinsk Regional Court 23/06/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Chelyabinsk Regional Court on 23/06/2017	3,500
4.	2565/18 18/12/2017	**Arslan Azatovich NIGAMATYANOV** 1994	Sholokhov Igor Nikolayevich Kazan	Anti-corruption rally Chelyabinsk 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Chelyabinsk Regional Court 18/08/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Chelyabinsk Regional Court on 18/08/2017	3,500
5.	2925/18 25/12/2017	**Galina Sergeyevna KULEMINA** 1987	Terekhov Konstantin Ilyich Moscow	Anti-corruption rally St Petersburg 12/06/2017	Articles 19.3 § 1 and 20.2 § 5 of CAO	fines of RUB 500 and RUB 10,000	St Petersburg City Court 30/06/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - taken to a police station to draw a record of administrative offence: arrested at 2:10 p.m. on 12/06/2017 during the rally, released on the following day, at 11 p.m. after the court hearing; the complaint was raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings. Final decisions: St Petersburg City Court on 30/06/2017	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage, and costs and expenses per applicant (in euros)[1]
6.	2931/18 25/12/2017	**Mikhail Valeryevich MARUSIN** 1985	Terekhov Konstantin Ilyich Moscow	Anti-corruption rally St Petersburg 12/06/2017	Articles 20.2 § 5 and 19.3 § 1 of CAO	fines of RUB 10,000 and RUB 500	St Petersburg City Court 27/06/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrested at 3 p.m. on 12/06/2017 during the rally; taken to a police station to draw a record of administrative offence; released on the following day, after the court hearing at 8 p.m.; raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings. Final decisions: St Petersburg City Court on 27/06/2017	4,000
7.	2932/18 25/12/2017	**Petr Alekseyevich OGAROK** 1997	Terekhov Konstantin Ilyich Moscow	Anti-corruption rally Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 30/06/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrested at 3 p.m. on 26/03/2017 during the rally; taken to a police station to draw a record of administrative offence; released on the same day, before midnight; the complaint was raised on appeal; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Moscow City Court on 30/06/2017	4,000

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8.	2935/18 25/12/2017	**Pavel Aleksandrovich VINOGRADOV** 1997	Terekhov Konstantin Ilyich Moscow	Anti-corruption rally St Petersburg 12/06/2017	Articles 20.2 § 5 and 19.3 § 1 of CAO	fines of RUB 10,000 and RUB 1,000	St Petersburg City Court 29/06/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrested at 3 p.m. on 12/06/2017 during the rally; taken to a police station to draw a record of administrative offence; released on the following day, after the court hearing at 7 p.m.; the complaint was raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings. Final decisions: St Petersburg City Court on 29/06/2017	4,000
9.	2952/18 09/12/2017	**Gennadiy Valeryevich NELYUBIN** 1976	Pyshkin Valentin Valentinovich St Petersburg	Rally for the rotation of Russian high-ranking officials St Petersburg 29/04/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 04/07/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: St Petersburg City Court on 04/07/2017	3,500
10.	3109/18 11/12/2017	**Dmitriy Alekseyevich METELEV** 1996	Pyshkin Valentin Valentinovich St Petersburg	Anti-corruption rally St Petersburg 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 03/08/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrested at 5.40 p.m. and released at 11 p.m. on 26/03/2017; the complaint was raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: St Petersburg City Court on 03/08/2017	4,000

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11.	3261/18 23/12/2017	**Galina Lvovna DROZDETSKAYA** 1950	Pyshkin Valentin Valentinovich St Petersburg	Rally for the rotation of Russian high-ranking officials St Petersburg 29/04/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 04/07/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: St Petersburg City Court on 04/07/2017	3,500
12.	3444/18 03/01/2018	**Ilya Andreyevich OSTROVSKIY** 1996	Terekhov Konstantin Ilyich Moscow	Anti-corruption protest St Petersburg 12/06/2017	Articles 19.3 § 1 and 20.2 § 5 of CAO	fines of RUB 500 and RUB 5,000	St Petersburg City Court 04/07/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrested on 12/06/2017 at 2.30 p.m. and released after 6 p.m. on 13/06/2017; the complaint was raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: St Petersburg City Court on 04/07/2017	4,000
13.	3453/18 03/01/2018	**Boris Aleksandrovich MEDVEDEV** 1994	Terekhov Konstantin Ilyich Moscow	Anti-corruption rally Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 04/07/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis – arrested at 3 p.m. on 26/03/2017 and released at 6.30 a.m. on 27/03/2017; the complaint was raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Moscow City Court on 04/07/2017	4,000

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14.	3463/18 26/12/2017	**Ivan Alekseyevich LEMEKHOV** 1997	Peredruk Aleksandr Dmitriyevich St Petersburg	Anti-corruption rally St Petersburg 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 29/06/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrested at 5 p.m. and released at about 9 p.m. on 26/03/2017; the complaint was raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: St Petersburg City Court on 29/06/2017	4,000
15.	3470/18 03/01/2018	**Aleksandr Aleksandrovich SKOBKAREV** 1988	Terekhov Konstantin Ilyich Moscow	Anti-corruption rally St Petersburg 12/06/2017	Articles 19.3 § 1 and 20.2 § 5 of CAO	fines of RUB 500 and RUB 10,000	St Petersburg City Court 04/07/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings. Final decisions: St Petersburg City Court on 04/07/2017	3,500
16.	3501/18 03/01/2018	**Yegor Vitalyevich YEVSTAFYEV** 1994	Terekhov Konstantin Ilyich Moscow	Anti-corruption rally St Petersburg 12/06/2017	Articles 19.3 § 1 and 20.2 § 5 of CAO	fines of RUB 500 and RUB 10,000	St Petersburg City Court 04/07/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings. Final decisions: St Petersburg City Court on 04/07/2017	3,500

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17.	3573/18 20/12/2017	**Lyubov Sergeyevna KALANTYRYA** 1995	Terekhov Konstantin Ilyich Moscow	Anti-corruption rally St Petersburg 12/06/2017	Articles 20.2 § 5 and 19.3 § 1 of CAO	fines of RUB 10,000 and RUB 1,000	St Petersburg City Court 22/06/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrested at about 2.30 p.m. on 12/06/2017 and released at about 10 p.m. after the court hearing on 13/06/2017; the complaint was raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings. Final decisions: St Petersburg City Court on 22/06/2017	4,000
18.	3625/18 11/12/2017	**Dmitriy Nikolayevich GRIGORYEV** 1965	Pyshkin Valentin Valentinovich St Petersburg	Rally for the rotation of Russian high-ranking officials St Petersburg 29/04/2017	Article 20.2 § 5 of CAO	fine of RUB 15,000	St Petersburg City Court 20/06/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrested at 2.40 p.m. and released at 7.40 p.m. on 29/04/2017; the complaint was raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: St Petersburg City Court on 20/06/2017	4,000
19.	3627/18 11/12/2017	**Yekaterina Vladimirovna MISTRYUKOVA** 1977	Pyshkin Valentin Valentinovich St Petersburg	Rally for the rotation of Russian high-ranking officials St Petersburg 29/04/2017	Article 20.2 § 5 of CAO	fine of RUB 15,000	St Petersburg City Court 13/06/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrested at 2.52 p.m. and released at 7.40 p.m. on 29/04/2017; the complaint was raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: St Petersburg City Court on 13/06/2017	4,000

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20.	3648/18 08/01/2018	**Nikita Vadimovich SHUMKOV** 1996	Terekhov Konstantin Ilyich Moscow	Anti-corruption rally St Petersburg 12/06/2017	Articles 20.2 § 5 and 19.3 § 1 of CAO	fines of RUB 10,000 and RUB 500	St Petersburg City Court 13/07/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrested by the police during the assembly on 12/06/2017 at 4 p.m., released on 13/06/2017 after 5 p.m. after the court hearing; the complaint was raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings. Final decisions: St Petersburg City Court 13/07/2017	4,000
21.	3650/18 12/01/2018	**Kirill Sergeyevich KOROLEV** 1995	Terekhov Konstantin Ilyich Moscow	Anti-corruption rally St Petersburg 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 03/08/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrested at 5.30 p.m. and released at 9.10 p.m. on 26/03/2017; the complaint was raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: St Petersburg City Court on 03/08/2017	4,000

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22.	3651/18 08/01/2018	**Nina Nikolayevna KHATKEVICH** 1997	Terekhov Konstantin Ilyich Moscow	Anti-corruption rally St Petersburg 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 03/08/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis – arrested at 5.30 p.m. and released at 9.15 p.m. on 26/03/2017; the complaint was raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: St Petersburg City Court on 03/08/2017	4,000

[1] Plus any tax that may be chargeable to the applicants.